

Court No. - 37

Case :- WRIT - C No. - 38485 of 2017

Petitioner :- Musharraf

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shyam Murari Upadhyay

Counsel for Respondent :- C.S.C.

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Learned counsel for the petitioner may file a Supplementary Affidavit bringing on record the demand notice or the recovery certificate the description whereof has been made in annexure-1 to the writ petition.

Sri Awadhesh Kumar Saxena, learned counsel has appeared on behalf of the respondent/Electricity Department.

Put up on 30.08.2017 as requested by the learned counsel for the petitioner.

Order Date :- 24.8.2017

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Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shyam Murari Upadhyay

Counsel for Respondent :- C.S.C.,A.K. Saxena

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Heard learned counsel for the petitioner.

Admittedly the dispute raised in this petition is a billing dispute of electricity consumption for running a 7.5 H.P. electric motor. Learned counsel for the petitioner submits that the recovery issued is based on an incorrect calculation and therefore the same deserves to be quashed.

We had granted time to the petitioner to file a Supplementary Affidavit that has been placed before us today on record.

Sri Saxena, learned counsel for the respondents/Electricity Department submits that this dispute can be resolved by the fourth respondent in terms of the U.P.Electricity Supply Code, 2005.

The writ petition is therefore disposed off with liberty to the petitioner to approach the fourth respondent who shall examine the grievance of the petitioner and pass an appropriate order keeping in view the provisions of clause 6.5 of the U.P.Electricity Supply Code, 2005 within three weeks from the date of presentation of the certified copy of the order. The recovery initiated shall remain in abeyance till the final orders are passed by the Executive Engineer.

Writ petition is disposed off with the said directions.

Order Date :- 30.8.2017

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